

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR MICHAEL BLISKO

Tentative Ruling: No tentative ruling. Motion was withdrawn on 6.29.26.

The court notes that there was a substitution of attorney filed on 6.11.26 indicating that attorney Brandon D. Saxon is the new legal representative for Defendant Michael Blisko.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR BRYAN PICKRYL

Tentative Ruling: Motion to be Relieved as Counsel for Defendant Bryan Pickryl GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Bryan Pickryl shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel or proceeding pro per in this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO BE RELIEVED AS COUNSEL FOR DISCOVERY POINT RETREAT, INC., A TEXAS CORPORATION

Tentative Ruling: Motion to be Relieved as Counsel for Defendant Discovery Point Retreat Inc. GRANTED.

Attorneys Krista M. Enns and Steven M. Selna are relieved as counsel of record for Defendant, effective upon the filing of the proof of service of the signed court order upon the Defendant.

A status hearing re representation for Defendant Discovery Point Retreat Inc. shall be set for 9.14.26. Defendant is to submit a declaration 10 days prior to the hearing date giving an update regarding obtaining counsel for this matter.

Trial Setting Conference and the two Order to Show Causes remain calendared for 12.03.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503186	HORN VS BELLA MONTE RECOVERY II LLC, A CALIFORNIA LIMITED LIABILITY COMPANY	MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET ONE) BY LATOYA HORN

Tentative Ruling: Pursuant to CCP §2031.010, a party may demand that any other party produce a document that is in the possession of another party for inspection. Likewise, any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) A party responding to an interrogatory or request for production must serve a response within 30 days after service of the request. (CCP §§ §2030.260(a); 2031.260(a).) If the responding party fails to serve a timely response, the party waives all objections, including those based on privilege. (CCP §§ 2030.290(a); 2031.300(a).) There is no time limit for such motions and no meet and confer requirement. (*Sinaiko Healthcare Consulting Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, 411.)

On November 21, 2025, Plaintiff served the first set of written discovery on Defendant. (RFP Decl. of Van Hook, ¶ 4; Ex. 2.) Thus, the initial response deadline was December 23, 2026. (Id.) However, Plaintiff granted six extensions of the response deadline up to March 27, 2026. (Id at ¶¶ 5-10; Ex. 4-8.) Defendant did not serve any responses prior to the extended deadline. (Id at ¶ 11.) Accordingly, Defendant waived objections as of that date. On April 24, 2026, Defendant served responses containing only objections. (Id at ¶ 17.)

Defendant argues that good cause for delay exists because its former counsel identified a potential conflict of interest in representing all Defendants in the action. Defendant's current counsel indicates that Plaintiff's counsel was first informed about the potential conflict on February 27, 2026 by former counsel. (Decl. of Eguiluz, ¶ 6; Ex. A.) The email states that former counsel was working through the potential conflict resulting from financial pressures in the business, which counsel hoped to have cleared by the following week. (Id.) Counsel requested additional time for the discovery. (Id.) Plaintiff granted an extension. (Decl. of Van Hook, Ex. 6.) However, Plaintiff's counsel asserts that the parties did not discuss or agree to an abeyance of the discovery deadline. (Id at ¶ 11.)

On March 26, 2026, the parties filed a Stipulation and (Proposed) Order Continuing Mediation Completion Deadline and Trial Setting Conference. (Decl. of Eguiluz, Ex. B.) Defendant argues this Stipulation evidences an agreement to an abeyance of the discovery deadline. However, the Stipulation provides only for continuance of the OSC and TSC to dates after November 20, 2026. The Stipulation refers to discovery only as a basis for the cause for the continuances. (Id ["Whereas, the discovery responses by Bella Monte Recovery II LLC have been delayed due to potential conflicts that have arisen among the Defendants, which may result in one or more of the Defendants retaining